

**Justification for Other than Full and Open Competition (JOFOC)
FCI Miami**

Pursuant to the Federal Acquisition Regulation (FAR) Subpart 6.302-2 (a)(2), the Federal Bureau of Prisons (BOP) has determined that the procurement of urgent medical services for an inmate at the Federal Correctional Institution (FCI), herein after referred to as "institution", located in Miami, Florida meets the criteria established for other than full and open competition. It is further determined that unusual and compelling urgency precludes full and open competition and delays in award would result in serious injury, financial, or other liabilities to the Government.

1. Identification of the agency and the contracting activity, and specific identification of the document as a "Justification for other than full and open competition."

Agency: Department of Justice

Contracting Activity: Federal Bureau of Prisons
FCI Miami
15801 SW 137th Ave
Miami, FL 33177

2. Nature and/or description of the action being approved.

It is determined that only one responsible source is capable of providing services to the institution, and that such an award would prevent serious injury, financial, or other liabilities to the Government. Urgent care for Oncology, Radiation Oncology, Otolaryngologist (ENT), and Internal Medicine services at JHCA Florida Mercy Hospital. The proposed period of performance will be approximately May 6, 2025, through September 30, 2025, with an estimated total cost of \$20,000.00.

3. A description of the supplies or services required to meet the agency's needs.

As part of the mission of the institution, comprehensive medical services are provided to the inmate population. In meeting the healthcare needs of the inmate population, the BOP provides essential medical, dental, and mental health services to Federal inmates. When a medical need arises that cannot be provided by the institution medical staff, referrals are made to community-based medical providers. This action is for out-of-network medical services, that will be provided for continuation of care for Oncology, Radiation Oncology, Otolaryngologist (ENT).

Due to the nature of medical services and the need to provide timely medical care to the inmate population, any delay in award is incompatible with the agency's needs. A proper invoice for services rendered will be provided to the institution upon completion of the treatment.

The services are being procured by a firm fixed price purchase order. The performance period is from May 6, 2025, through approximately September 30, 2025. The cost is estimated at \$20,000.00.

4. An identification of the statutory authority permitting other than full and open competition.

The statutory authority permitting other than full and open competition is 41 U.S.C. 3304(a)(2) as implemented by FAR 6.302-2, Unusual and Compelling Urgency. Specifically, FAR 6.302-2(a)(2) provides for the applicability of this authority in situations "when the agency's need for the supplies or services is of such an unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits bids or proposals." This action is for the acquisition of urgent medical services for an inmate.

5. A demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited.

FCI Miami cannot provide the required urgent care for Oncology, Radiation Oncology, Otolaryngologist (ENT) on-site and these services are out of network for comprehensive medical services. This urgent case will be completed at JHCA Florida Mercy Hospital due to services needed for specialized treatment and delay in award of contract would result in serious injury, financial or other, to the Government. JHCA Florida Mercy Hospital, is the only provider able to ensure seamless service delivery without any lapse in performance. The Government has determined that it is in its best interest to utilize the services of JHCA Florida Mercy Hospital, which is capable of providing the required medical services without delay. JHCA Florida Mercy Hospital's established medical network ensures that the institution's healthcare needs are effectively met.

6. A description of efforts made to ensure that offers are solicited from as many potential sources as practicable, including whether a notice was or will be publicized as required by subpart 5.2 and if not, which exception under 5.202 applies.

Due to the immediate need for medical services and continuity of care, it is not practical to solicit additional offers for this award. In accordance with FAR 5.201(b)(2), the contracting officer will ensure notice of the proposed contract action is forwarded to the Government Point of Entry (GPE).

7. A determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.

Pursuant to FAR 15.404-1(b)(2)(ii). The Contracting Officer has determined the price to be fair and reasonable. It is in the best interest of the Government to continue services with the incumbent provider for inmate catastrophic medical requirements.

8. A description of the market research conducted and the results or a statement of the reason market research was not conducted.

It has been determined only one source is currently available to provide immediate and urgent services to maintain continuity of medical care. These services are vital to the Government and must be continued without interruption. JHCA Florida Mercy Hospital, is the only provider able to ensure seamless service delivery without any lapses in performance.

9. Any other facts supporting the use of other than full and open competition.

There are no other supporting facts identified.

10. A listing of the sources, if any, that expressed, in writing, an interest in the acquisition.

There are no other sources available that would be able to provide the services in the immediate timeframe required by the Government.

11. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the supplies or services required.

No actions are identified.

12. Contracting officer certification that the justification is accurate and complete to the best of the contracting officer's knowledge and belief.

In accordance with FAR 6.303-2(b)(12), I hereby certify that this justification is accurate and complete to the best of my knowledge and belief. I further certify to the best of my knowledge and belief that this request is not the result of a lack of acquisition planning, or a desire to expend funds while those funds are still available.

Submitted by:

Richard Hammond
Field Acquisition Office

Date

I certify that the supporting data provided by the technical and requirements personnel which forms the basis for this justification is complete and accurate to the best of my knowledge and belief.

M. Braddy

Merricent Braddy, Health Services Administrator
FCI Miami

5/7/25

Date